UNITED STATES DISTRICT COURT
NORTHERN DISTRICT OF NEW YORK

JASON GOLUB,

Plaintiff,

-against-

TIM COLL and PAUL VEITCH, in their individual capacities, CITY OF SARATOGA SPRINGS; SARATOGA SPRINGS POLICE DEPARTMENT,

Defendants.

1:26-cv-1490 (ECC/DJS)

COMPLAINT AND DEMAND FOR JURY TRIAL

Plaintiff, Jason Golub, by and through his attorneys, Capezza Hill, LLP, hereby alleges as his Complaint the following:

PRELIMINARY STATEMENT

1. This is a case about the unlawful abuse and misuse of government power. Plaintiff Jason Golub is a lawyer and public servant who was wrongly and falsely accused of a crime he did not commit and made to bear the financial and personal costs of defending himself and his reputation against a baseless investigation and prosecution spearheaded by Defendant Tim Coll ("Coll") and effectuated by Defendant Paul Veitch and the Saratoga Springs Police Department. As set forth herein, Coll leveraged his elected political position as a City of Saratoga Springs Commissioner of Public Safety and his status as a former FBI agent to instigate a criminal prosecution against Plaintiff, a political adversary and African-American, who voiced concerns about implicit bias and racial profiling that infuriated Mr. Coll, who then set off on a campaign of retaliation and retribution against Plaintiff that culminated in a flawed and baseless criminal prosecution that was ultimately dismissed.

PARTIES

2. Plaintiff Jason Golub is an African-American individual residing in the City of Saratoga Springs, County of Saratoga, State of New York.

3. For the period beginning in 2024, Defendant Tim Coll ("Coll") was the duly elected Public Safety Commissioner for the City of Saratoga Springs, and is a resident of the

PARTIES

2. Plaintiff Jason Golub is an African-American individual residing in the City of Saratoga Springs, County of Saratoga, State of New York.

3. For the period beginning in 2024, Defendant Tim Coll ("Coll") was the duly elected Public Safety Commissioner for the City of Saratoga Springs, and is a resident of the County of Saratoga, State of New York. Defendant Coll is a former FBI agent and is a white man.

4. Defendant Lieutenant Paul Veitch ("Lt. Veitch") is a resident of the County of Saratoga, State of New York, and at all times relevant herein was employed as a detective by the Saratoga Springs Police Department, acting in his individual capacity.

5. At all times relevant herein, Defendant City of Saratoga Springs, New York (hereinafter "City"), is a municipal corporation organized and existing pursuant to the laws of the State of New York and set up as a commission form of government.

6. The Saratoga Springs Police Department ("SSPD") is a department within the City and is subordinate to the Commissioner of Public Safety.

JURISDICTION AND VENUE

7. This action is brought under 42 U.S.C. § 1983 and New York State common law.

8. This Court has jurisdiction over Plaintiff's federal claims pursuant to 28 U.S.C. § 1331 and supplemental jurisdiction over his state law claims pursuant to 28 U.S.C. § 1367.

9. Venue is proper in this court pursuant to 28 U.S.C. § 1391 because all parties reside within the Northern District of New York and a substantial parts of the events giving rise to the claim occurred within the Northern District of New York.

JURISDICTION AND VENUE

10. A Notice of Claim pursuant to the New York State General Municipal Law was served on the City of Saratoga Springs Corporate Counsel on August 15, 2025.

11. A hearing pursuant to Gen. Mun. L. 50-h was held on July 1, 2026.

12. More than thirty (30) days have elapsed since the presentation of the claim and the claim remains unpaid and unadjusted.

FACTUAL ALLEGATIONS

I. Background

13. Plaintiff is a public servant and an attorney in good standing who is licensed to practice law in the State of New York.

14. Plaintiff has never been subject to any attorney disciplinary proceeding.

15. Plaintiff is a registered Democrat and is African American.

16. Following the murder of George Floyd in 2020, the City of Saratoga Springs formed a Police Reform Task Force ("Task Force"), made up of twelve residents, the City Attorney, and the City's Police Chief.

FACTUAL ALLEGATIONS

I. Background

17. Plaintiff was one of the twelve residents appointed to the Task Force and was named Co-Chair of the Task Force upon its inception.

18. In April of 2021, the City Council adopted a 50-point plan recommended by the Task Force that called for various reforms to police procedures.

19. In May of 2022, Plaintiff was unanimously selected by the City Council to fill the vacant post of Commissioner of Public Works.

20. In November of 2022, Plaintiff was elected to the position of Commissioner of Public Works after defeating Republican candidate Anthony Scirocco Jr.

21. Plaintiff served as the Commissioner of Public Works until August 2024, when he resigned upon accepting his current position as Deputy Commissioner and General Counsel for the New York State Department of Corrections and Community Supervision.

II. Defendant Tim Coll's Smear Campaign

22. Defendant Tim Coll is a white man and ran on the Republican Party ticket.

23. In August of 2022, Plaintiff publicly criticized a proposed panhandling ordinance that was up for a vote before the City Council.

24. Plaintiff expressed concerns about the proposed ordinance's subjectivity and potential for unfair treatment under the law based on class and race.

25. At this time, Defendant Coll did not occupy any elected position within the City.

26. As of August 2022, Plaintiff had never even spoken to Mr. Coll.

27. After Plaintiff's statements regarding the proposed ordinance, Coll contacted Plaintiff's then-employer, Kahilla (a private company) on or about August 25, 2022. Coll stated in an email to Plaintiff's employer that he is a retired FBI Agent and requested an email address to which he could file an "official complaint" against Plaintiff.

28. Coll's contact with Plaintiff's employer was in direct response to Plaintiff's outspoken criticism of the proposed panhandling ordinance.

29. Then, on or about August 30, 2022, Coll filed a complaint with the Appellate Division, Third Department's Attorney Grievance Committee accusing Plaintiff of "bigotry" and describing him as "racist on several fronts" because Plaintiff used a hypothetical scenario to make a point about implicit racial and class-based bias during a public debate about the panhandling ordinance. He further accused Plaintiff of misconduct, noting Plaintiff's position as a public official, based on Plaintiff's advocacy. At no time was Defendant Coll a client of Plaintiff, nor did Coll have any interaction with Plaintiff in a legal setting.

30. The Attorney Grievance Committee declined to investigate Coll's complaint.

31. Next, on September 2, 2022, Defendant Coll a wrote a letter to the editor of a Saratoga newspaper reiterating his grievances against Plaintiff.

32. At or around this same time, Coll also filed a complaint regarding Plaintiff to Congressman Paul Tonko.

33. In September of 2022, former Mayor of Saratoga Meg Kelly and Former Head of Counterterrorism at the FBI, Art Cummings, intervened on Plaintiff's behalf to try to stop Coll's unhinged and baseless attacks.

34. Due to Coll's ongoing attacks and obsessive behavior directed against Plaintiff, and for fear for his and his two young children's safety, Plaintiff contacted the Saratoga Springs Police Department ("SSPD").

35. Plaintiff met with Lieutenant Bob Jilson regarding Coll's attacks.

36. In direct response to Coll's continued attacks, the SSPD installed a panic button in Plaintiff's City Hall office for his personal protection.

III. May 2023 Resolution Regarding Historic Racism

37. In May 2023, the City Council – of which Plaintiff was still a part – passed a resolution formally apologizing for the City's past of systemic racism, including within local policing.

38. The resolution, which Plaintiff supported, acknowledged, apologized for, and review the City's historic racism as part of the establishment of a panel to begin a conversation of rectifying the historic wrongs. These were part of recommendations made by the Police Reform Task Force.

39. Defendant Coll was notably opposed to many of the recommendations of the Police Reform Task Force and was highly critical of documentations of historic racism within SSPD.

IV. The Commissioner of Public Safety Position

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review the City's historic racism as part of the establishment of a panel to begin a conversation

of rectifying the historic wrongs. These were part of recommendations made by the Police

Reform Task Force.

Department, responsible for the enforcement of laws, ordinances, rules and regulations in the City

39. Defendant Coll was notably opposed to many of the recommendations of the

and the appointment and oversight of the Chief of Police.

Police Reform Task Force and was highly critical of documentations of historic racism within

SSPD.

IV. The Commissioner of Public Safety Position

40. In November of 2023, Coll was elected to the position of Public Safety

Commissioner for the City.

41. In the City, the Commissioner of Public Safety is the Head of the Police

Department, responsible for the enforcement of laws, ordinances, rules and regulations in the

City and the appointment and oversight of the Chief of Police.

42. The Commissioner of Public Safety is responsible for the oversight of the SSPD.

43. The Commissioner of Public Safety is responsible for developing, managing,

implementing, and updating plans and policies of the Department under their authority.

44. The Commissioner of Public Safety is a policy maker for the City.

45. The Commissioner of Public Safety has the power to fire and discipline SSPD

members.

46. In February of 2024, after an extensive investigation, the New York State

Attorney General's Office issued a Formal Report ("Report") concerning the SSPD.

47. The Report echoed Plaintiff's 2022 concerns regarding racial and class-based bias

in the policing practices of the SSPD and found that reforms in policy and practice were needed.

48. The Report found that former Commissioner of Public Safety, Robin Dalton, had

explicitly ordered members of the SSPD to make arrests of protesters during Black Lives Matter

protests – and that the SSPD complied with the directives.

49. The Report found that while the Commissioner of Public Safety did not have the

legal power to order police to make arrests, the reforms in policy and practice were needed all

members of the SSPD in policymaking and has the power to fire or discipline officers.

50. The City Charter explicitly subordinates the Chief of the SSPD to the

Commissioner of Public Safety.

49. The Report found that while the Commissioner of Public Safety did not have the legal power to order police to make arrests, the Commissioner of Public Safety outranks all members of the SSPD in policymaking and has the power to fire or discipline officers.

50. The City Charter explicitly subordinates the Chief of the SSPD to the Commissioner of Public Safety.

V. Plaintiff's Sink Clog

51. In sum, the Report found that there existed an unofficial policy in the SSPD granting de facto arrest policy making authority to the Commissioner of Public Safety because of the inherent political power and administrative authority the Commissioner has over the SSPD and its officers.

52. In December of 2023, Plaintiff had a clogging sink issue in his home.

53. Plaintiff asked Deputy Commissioner of Public Works O'Neill if any Department of Public Works ("DPW") employees wanted after-hours work to look at the drain issue.

54. It was common and acceptable practice for DPW employees to take side jobs and find extra work after hours.

55. Deputy Commissioner O'Neill and DPW employee Ken Dooley went to Plaintiff's home after work hours and fixed the drain issue in approximately forty-five minutes.

56. At that time, Ken Dooley was a provisional employee for the Department of Public Works.

57. The next day, at his request, Ken Dooley returned to Plaintiff's house to pick up tools he had left there the night before and to drop off a bottle of drain cleaner. At no time did the plaintiff request Dooley return to the house nor did he request a bottle of drain cleaner.

58. Dooley was at Plaintiff's residence for approximately nine minutes that day.

59. Dooley did no work on Plaintiff's house during the nine-minute visit.

60. In February of 2024, Dooley was fired by Deputy Commissioner Joe O'Neill from his job by Deputy Commissioner O'Neill for poor performance and harassment of female employees.

61. Plaintiff had no prior knowledge of, or involvement in, Ken Dooley's firing.

proceedings against Plaintiff by charging him with a misdemeanor, which they knew was without probable cause, which was dismissed in Plaintiff's favor, and restrained Plaintiff's liberty.

61. Plaintiff had no prior knowledge of, or involvement in, Ken Dooley's firing.

FIRST CAUSE OF ACTION

Malicious Prosecution under 42 U.S.C. § 1983

(Against Defendants Coll and Veitch)

143. Defendants charged Plaintiff with crimes falsely, maliciously, in bad faith, and without probable cause.

62. Plaintiff repeats and realleges the allegations contained in paragraphs 1 through 123 above.

144. Defendants knew they lacked probable cause to prosecute Plaintiff because they knew he had done nothing wrong, and that no reliable information suggested Plaintiff had committed any offense.

63. At all times relevant, Defendants Coll and Lt. Veitch, were state actors acting under color of law.

145. No reasonable officer or public official would have believed there was probable cause to prosecute Plaintiff under these circumstances.

64. That on November 4, 2024, Defendant Lt. Veitch, at Coll's instigation and direction, did intentionally, maliciously, and without justification, commence criminal proceedings against Plaintiff by charging him with a misdemeanor, which they knew was without probable cause, which was dismissed in Plaintiff's favor, and restrained Plaintiff's liberty.

146. After criminal proceedings in which Plaintiff was forced to defend himself, all charges against Plaintiff were terminated in Plaintiff's favor on a motion to dismiss.

65. Defendants charged Plaintiff with crimes falsely, maliciously, in bad faith, and without probable cause.

147. Defendants acted under pretense and color of state law. Said acts by Defendants were beyond the scope of their jurisdiction, without authority of law, and in abuse of their powers, and Defendants acted willfully, knowingly, and with the specific intent to deprive Plaintiff of his constitutional rights secured by 42 U.S.C. § 1983, and by the Fourth and Fourteenth Amendments to the United States Constitution.

66. Defendants knew they lacked probable cause to prosecute Plaintiff because they knew he had done nothing wrong, and that no reliable information suggested Plaintiff had committed any offense.

67. No reasonable officer or public official would have believed there was probable cause to prosecute Plaintiff under these circumstances.

148. Said acts by Defendant Coll are part of an ongoing and continuous pattern of unwarranted and malicious attacks, beginning in 2022.

68. After criminal proceedings in which Plaintiff was forced to defend himself, all charges against Plaintiff were terminated in Plaintiff's favor on a motion to dismiss.

149. As a direct and proximate result of the Defendants' misconduct and abuse of authority detailed above, Plaintiff sustained the damages hereinbefore alleged.

69. Defendants acted under pretense and color of state law. Said acts by Defendants were beyond the scope of their jurisdiction, without authority of law, and in abuse of their powers, and Defendants acted willfully, knowingly, and with the specific intent to deprive Plaintiff of his constitutional rights secured by 42 U.S.C. § 1983, and by the Fourth and Fourteenth Amendments to the United States Constitution.

SECOND CAUSE OF ACTION

State Law Malicious Prosecution

(Against Defendants Coll, Veitch, and SSPD)

150. Plaintiff repeats and realleges the above paragraphs as if they were set forth

70. Said acts by Defendant Coll are part of an ongoing and continuous pattern of unwarranted and malicious attacks, beginning in 2022.

- Coll leaked confidential investigative information to a political ally, John Kaufman, who then publicized the information to the public;
- Veitch filed criminal charges against Plaintiff on November 4, 2024 after being told by the Assistant District Attorney that there was not evidence to support the charge;
- Coll issued a press release on official letterhead announcing the charges;
- Defendants made public statements asserting Plaintiff's guilt despite knowing the lack of merit of the charges;
- Coll continued to make misleading and disparaging statements about Plaintiff and the charges even after the charges were dismissed.

71. As a direct and proximate result of the Defendants' misconduct and abuse of authority detailed above, Plaintiff sustained the damages hereinbefore alleged.

WHEREFORE, Plaintiff respectfully requests that this Court enter judgment in his favor and grant the following relief:

a. Compensatory and consequential damages in an amount to be determined at trial, including lost wages, reputational harm, emotional distress, and other economic and non-economic injuries;

b. Awarding punitive damages;

c. Awarding attorney's fees, costs, and expenses pursuant to 42 U.S.C. § 1988; and

d. Such other and further relief as the Court deems just and proper.

213. These overt acts caused damages to Plaintiff, including deprivation of liberty, reputational harm, emotional distress, financial loss, and interference with career opportunities.

214. Defendants Coll and Veitch acted willfully and with specific intent to deprive Plaintiff of his constitutional rights.

215. As a direct and proximate result of the foregoing, Plaintiff sustained the damages alleged herein.

WHEREFORE, Plaintiff respectfully requests that this Court enter judgment in his favor and grant the following relief:

a. Compensatory and consequential damages in an amount to be determined at trial, including lost wages, reputational harm, emotional distress, and other economic and non-economic injuries;

b. Awarding punitive damages;

c. Awarding attorney's fees, costs, and expenses pursuant to 42 U.S.C. § 1988; and

d. Such other and further relief as the Court deems just and proper.

DEMAND FOR JURY TRIAL

Plaintiff hereby demands a jury trial as to all claims so triable in this action.

Dated: August 3, 2026

CAPEZZA HILL, LLP

By: _____
Benjamin W. Hill
Bar Roll No. [to be supplied]
Ben@capezzahill.com
Allee N. von Stackelberg
Bar Roll No. [to be supplied]
[e-mail to be supplied]

30 South Pearl Street, P-100
Albany, New York 12207
(518) 478-6065

Attorneys for Plaintiff Jason Golub